

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 06/12/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

*HEARING ON MOTION IN RE: ATTORNEY'S FEES ON APPEAL OF DISCOVERY SANCTIONS ORDER |
THE COURT ON ITS OWN MOTION CONTINUES THE HEARING TO 6/12/26 PER TR.

FILED BY:

TENTATIVE RULING:

Before the Court is the Motion of Defendant and Cross-Plaintiff MICHAEL CISTERNINO (“Cisternino”) for Attorneys’ Fees on Appeal of Discovery Sanctions Order (“Motion”) filed by Plaintiff XIAO YI ZHENG (“Zheng”) and Sanctions Debtor DAVID STURGEON-GARCIA (“Attorney Sturgeon”). The motion is **granted**.

Cisternino is the prevailing party entitled to reasonable attorneys’ fees incurred in defense of the appeal filed on February 23, 2024, by Attorney Sturgeon on behalf of himself and Zheng (the “Appeal”). (*Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1152.)

Under California law, a prevailing party entitled to fees is awarded a reasonable amount as determined by calculating the “lodestar,” absent exceptional circumstances. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1097.) There is a three-step process for the Court to calculate the lodestar: (1) determine the number of hours reasonably expended; (2) determine the reasonable hourly rate to apply to those hours; and (3) exercise its discretion to increase or decrease the amount of fees determined in the first two steps. (*Christian Research Inst. v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) “Reasonably spent” means that time spent ‘in the form of inefficient or duplicative efforts is not subject to compensation.’” (*Horsford v. Bd. Of Trustees of California State Univ.* (2005) 132 Cal.App.4th 359, 394 (citations omitted).)

I. REASONABLE HOURS

Zheng and Attorney Sturgeon filed an appeal that put in issue hundreds of discovery objections. Aspects of their Appeal were deemed “meritless” by the Court of Appeal after full briefing by both sides.

To date, neither Zheng nor Sturgeon has complied with the underlying discovery order, which is now over two years old. Despite having been provided with detailed time records showing each task undertaken to respond to the Appeal and the time actually spent and billed on each of those tasks down to the tenth of an hour, neither Attorney Sturgeon nor Zheng challenge even a single entry as having been duplicative, inefficient, or otherwise unreasonable. This is despite the fact

that the moving papers specifically and clearly directed them both to the evidence, here the actual bills sent to and paid by Cisternino for the work made necessary by the Appeal. (Declaration Of Daniel A. King In Support Of Motion for Attorney's Fees on Appeal of Discovery Sanctions Order ("King Decl."), ¶¶ 7-9, Exh. C.) The Court finds the unchallenged hours contained in the billings reasonable in their entirety, in light of the scope of the Appeal and the work reasonably necessary to respond to it. It further finds the time necessary to respond to the Appeal was

extended as a result of Zheng and Attorney Sturgeon's failure to provide a proper record for the Court of Appeal and their failure to provide the Court of Appeal with an accurate disclosure of the facts relevant to the Appeal in their opening brief, both in violation of the Rules of Court. (King Decl., ¶ 15; Request for Judicial Notice, Item Nos. 17-20.)

In total, the Court finds that 48.2 Attorney Hours were reasonable in the successful

defense of the appeal. (King Decl. ¶¶ 708, Exh. C) These hours fall into the following categories:

Record matters and case management, including review of briefing, evidence, and argument filed in the Trial Court, along with evaluation of documents contained in Appellants' designation of record on appeal and preparation of Respondent's Designation	10.5 Hours
Research, Draft, Review and Revise Respondent's Brief, Including	33.0 Hours

Evaluation of Appellants' Opening Brief	
Evaluate Court of Appeal's Tentative Ruling and Prepare for Oral Argument Demanded by Appellants:	2.0 Hours
Required correspondence with Court of Appeal and client regarding Appeal pending for nearly two years.	2.7 Hours
	Total 48.2 Hours

In addition to time reasonably spent in the successful defense of the Appeal, Cisternino is also entitled to time reasonably spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declarations in Support, Reply, and other papers in support of the instant motion. As with the hours expended in the successful defense of the Appeal, these hours were detailed to both Zheng and Attorney Sturgeon; neither has challenged any of the hours sought as unnecessary or unreasonable, despite each having actual notice of and each actually responding to the moving papers. The Court finds that Cisternino reasonably incurred 17.6 hours to research, draft, review, and revise the Notice of Motion and Motion for Attorneys' Fees on Appeal of Discovery Sanctions Order, the Memorandum in Support of that motion, the Request for Judicial Notice, and the Declaration of Daniel A. King in support. (King Decl. ¶¶ 9-10.)

These hours fall into the following categories:

Research, draft, review and revise Notice of Motion and Motion:	1.5 Hours
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Research, draft, review and revise Memorandum in Support:	10.1 Hours
Research, draft, review, and revise Declaration of Daniel A. King:	2.0 Hours
Research, draft, review, and revise Request for Judicial Notice:	4.0 Hours
	Total 17. 6

In addition to this time, the Court also finds that an additional six (6) hours were reasonably incurred in preparing a Reply and additional papers for the Court, as detailed in Paragraph 10 of the King Declaration, for a total of 23.6 hours reasonably incurred in the prosecution of the instant Motion.

II. REASONABLE RATE

The Court's next task is to determine the reasonable rate to apply to the hours it found were reasonably incurred. (*Christian Research Inst., supra*, 165 Cal.App.4th 1315 at 1321.) As the Supreme Court has explained, the hourly rate called for under the law is the prevailing rate for private attorneys in the community where the court sits, conducting non-contingent litigation of the same type. (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1133.) It must then apply that rate to the hours found reasonable in the first step, the product of which is often referred to as the "raw lodestar."

Cisternino was billed at a rate between \$525 and \$545 per hour for work on the Appeal and at a rate of \$545 per hour for work on the instant motion, as detailed in the Declaration of Daniel A. King filed in support of the Motion. At those rates, the raw lodestar would be:

\$26,269	For successful defense of the Appeal
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\$12,862	In total spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order on the instant Motion.
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The Court finds the rates billed to Cisternino were more than reasonable for the quality of the work, in the geographic region where the Court sits. The court finds that a reasonable rate for the work in this geographic region is \$650 per hour and hereby fixes the raw lodestar as follows:

\$31,3304	For successful defense of the Appeal
\$15,340	For researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order on the instant Motion.

III. A MULTIPLIER

The Court's final task is to determine whether to award a discretionary multiplier to adjust the raw lodestar up or down to arrive at an overall reasonable fee. (*Christian Research Inst., supra*, 165 Cal.App.4th 1315,1321.) The raw lodestar number may be adjusted by the Court based on the novelty and difficulty of the questions involved and the skill displayed in presenting those issues. (*Ketchum v. Moses, supra*, 24 Cal.4th at 1132.)

In light of the quality of the work on a matter before the Court of Appeal and that

observed in the pleadings filed in this Court, the Court finds that a reasonable multiplier of 1.2 is appropriate here. As a result, it fixes the lodestar as follows:

\$37,569	For successful defense of the Appeal
\$18,408	In total spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order for the instant Motion.

Plaintiff XIAO YI ZHENG and Sanctions Debtor DAVID STURGEON-GARCIA (“Attorney Sturgeon”) are ordered to pay the attorney fees and sanctions in full within 30 calendar days of service of notice of entry of this order.

2. 9:00 AM CASE NUMBER: C23-00652
CASE NAME: LAYLA HAYNES VS. JORGE BELTRAN-AGUIRRE
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AMERICAN AUTOMOBILE ASSOCIATION OF NORTHERN CALIFORNIA, NEVADA & UTAH
TENTATIVE RULING:

The unopposed demurrer of Defendant American Automobile Association of Northern California, Nevada & Utah (AAA NCNU) to the Plaintiff’s Second Amended Complaint filed December 5, 2025 is **sustained in its entirety** without leave to amend.

3. 9:00 AM CASE NUMBER: C23-01467
CASE NAME: BILLY HOLDMAN VS. STEPHAN LINDSTROM
*HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT FOR DAMAGES
FILED BY: HOLDMAN, BILLY
TENTATIVE RULING:

The unopposed motion of Plaintiffs Billy Holdman and Juanita Moffett, by and